

24STCV18520 24STCV18520

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Case Number: 24STCV18520 Hearing Date: August 10, 2026 Dept: 510

No.

7 – Euler Hermes North America Ins. Co. v. One Vision Enterprises, Inc.

Cross-Defendant

One Vision Enterprises, Inc.'s Demurrer to Farmer's Business Network, Inc. and Generic Corp Science, LLC's First Amended Cross-Complaint

Cross-Defendant

One Vision Enterprises, Inc. ("OVE") demurs to the fifth cause of action for unjust enrichment in Farmer's Business Network, Inc. and Generic Corp Science, LLC's (collectively "Cross-Complainants") first amended cross-complaint.

OVE

argues Cross-Complainants do not state a claim for unjust enrichment because there is no claim for unjust enrichment under California law. The Court agrees. "California does not recognize a cause of action for unjust enrichment." (Hooked Media Group, Inc. v. Apple Inc. (2020) 55 Cal.App.5th 323, 336.) "Unjust enrichment is 'a general principle, underlying various legal doctrines and remedies,' rather than a remedy itself." (Melchior v. New Line Productions, Inc. (2003) 106 Cal.App.4th 779, 793.) "It is synonymous with restitution." (Ibid.)

However,

"[i]t has long been established that in ruling on a demurrer, the trial court is obligated to look past the form of a pleading to its substance. Erroneous or confusing labels attached by the inept pleader are to be ignored if the complaint pleads facts which would entitle the plaintiff to relief." (Saunders v. Cariss (1990) 224 Cal.App.3d 905, 908.)

In

opposition, Cross-Complainants do not identify a specific alternate cause of action that it could be asserting. Cross-Complainants assert: “As alleged in the First Amended Cross-Complaint, OVE knowingly accepted payments for the same amounts from Alterna and OVE, unjustly enriching OVE beyond what it could have been owed.” (Opp., p. 4.) Even when considering the substance of the allegations in the cross-complaint, it is not clear to the Court that those allegations support a specific legal theory that is not already asserted as fraud, negligent misrepresentation or promissory estoppel, for which restitution (i.e., unjust enrichment) may be a remedy. Cross-Complainants cite to cases that suggest the claim is in fact for restitution rather than unjust enrichment. (Opp., p. 4, citing *O’Grady v. Merchant Exchange Prods.* (2019) 41 Cal.App.5th 771, 791-792.)

From

the cases cited by Cross-Complainants, three possible causes of action are quasi-contract, quantum meruit and money had and received. Yet the facts currently alleged do not seem to support any of these causes of action. Regardless, it is not up to the Court – or cross-defendant – to guess the legal theory on which the remedy is premised. That is the pleading parties’ obligation. The Court will allow Cross-Complainants an opportunity to specify the cause of action for which it seeks recovery and the facts supporting that cause of action.

Disposition

Cross-Defendant

One Vision Enterprises, Inc.’s demurrer to the fifth cause of action in the first amended cross-complaint is sustained with 21 days’ leave to amend.